IN THE COURT OF THE COMMERCIAL SUBORDINATE JUDGE OF COIMBATORE

I.A.NO. OF 2024

C.O.S.NO. 472 OF 2023

1. M/s. Kannan Departmental Stores Pvt Ltd.
2. M/s. Reliance Retail Venture Ltd.
3. M/s. Reliance Industries Ltd. - Petitioners/Defendants 8 to 10

-Vs-

Mr. R.Sriharirаm - Respondent/Plaintiff

AFFIDAVIT

I, Mr.Frederic Regi Kumar A, S/o. Arockiya Dhas, aged 48 years, Deputy Manager, Reliance Retail Limited., Sri Abbhi Nivas Ranga Nagar, Rakkachi Garden, Maniakaranpalayam, Coimbatore 641006.

1. I am the petitioner herein and authorised person on behalf of defendants 8 to 10 to proceed with above case.

2. I submit that respondent/plaintiff herein filed the above suit against the defendants 8 to 10 herein by seeking relief to restrain the defendants 1 to 7 from in anyway collecting monthly rent from them (defendants 8 to 10)

3. I state that during pendency of the above case, the other defendants entered into a registered Lease Agreement with 8th defendant dated 14.01.2020 registered as Doc.No.272/2020 by way of renewal and I am herewith producing the Certified Copy of the said Lease Agreement since the original is with the land owners. I also herewith produce the Payment Advice regarding payment of monthly rents to the defendants as set out in Proof Affidavit, as on date.

4. I submit that the aforesaid documents are after date of suit and as such I may be permitted to produce the same to prove our stand or else the petitioners will be put to hardship.

Therefore, I pray that this Hon'ble Court may be pleased to pass an order by permitting me to produce those documents as detailed in accompanying petition by condoning the delay in producing it and pass such other further orders.

Solemnly affirm and signed
before me at Coimbatore on **PETITIONER**

ADVOCATE, COIMBATORE.

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PETITION FILED UNDER ORDER 11 RULE 1 (10) OF C.P.C

I.PETITIONERS/DEFENDANTS 8 TO 10:-

1. M/s.Kannan Departmental Stores Pvt Ltd., having business at No.1274, Trichy Road, Coimbatore – 641018.

2. M/s.Reliance Retail Venture Ltd., 3rd floor, Court House, Lokmanya Thilak Marg, Dhobi Talao, Mumbai – 400002.

3. M/s.Reliance Industries Ltd, 3rd floor, Marker Chambers IV, 222, Nariman Point, Mumbai – 400021.

II. RESPONDENT/PLAINTIFF:-

1. Mr.R.Sriharirаm, S/o Late T.Ramakrishnan, Partner, Sripathy Towers, aged about 40 years, residing at 1272, Trichy Road, Coimbatore – 641018.

For the reasons stated in the accompanying affidavit the petitioner prays that this Hon'ble court may be pleased pass an order by permitting me to produce those documents as detailed in accompanying petition by condoning the delay in producing it and pass such other further reliefs, which this Hon'ble Court deems fit and proper according to the circumstances of the case and thus render justice.

ADVOCATE FOR PETITIONER

LIST OF DOCUMENTS:

S.NO	DATE	NATURE OF DOCUMENTS	ORIGINAL/CERTIFIED COPY
1.	14.01.2020	Lease Agreement executed between 8th defendant and Ramanathan, Chandrika, Ramamurthy and Sriram Ramanarayanan	Certified Copy
2.	01.02.2024	Authorisation letter given by 8th defendant	Original
3.		Payment Advice from 05.04.2023 to 05.01.2024	True Copy

ADVOCATE FOR PETITIONER

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- Petitioners/Defendants 8 to 10

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Mr. R.Sriharirаm

- Respondent/Plaintiff

PETITION FILED UNDER ORDER 11 RULE 1 (10) OF C.P.C

Pre.on:

ADDRESS FOR SERVICE:
S.Chandrasekaran, M.A., B.L., DLL., (MS.595/1986)
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